Summary: Interpretive Guidance on the Notion of Direct Participation in Hostilities under IHL

Nils Melzer (ICRC Legal Adviser), International Committee of the Red Cross, Geneva, 2009 (92 pp.)

In one paragraph. Civilians are protected against direct attack "**unless and for such time as they take a direct part in hostilities**" (AP I, Art. 51(3); AP II, Art. 13(3); CA3), but no treaty defines direct participation in hostilities (**DPH**). After an expert process (2003–2008, with the TMC Asser Institute), the ICRC sets out **10 recommendations** answering three questions: (1) **who is a civilian**; (2) **what conduct counts as DPH**; and (3) **what rules govern the loss of protection**. Core ideas: in NIACs, members of organized armed groups with a **"continuous combat function"** are not civilians; DPH requires three cumulative elements – **threshold of harm, direct causation and belligerent nexus**; civilians lose protection only **for the duration of each act** (the "revolving door"); **in case of doubt, presume protection**; and force must not exceed what is **actually necessary**. The Guidance reflects **the ICRC's view only** and is **not legally binding**.

Background and purpose

- **Why it was needed:** hostilities have moved into cities, mixing civilians and fighters; military functions have been **outsourced** to private contractors and civilian employees; and fighters often fail to distinguish themselves ("**farmer by day, fighter by night**"). This leads to erroneous or arbitrary targeting of civilians and to danger for soldiers who cannot identify their adversary.
- **Nature:** the Guidance interprets **existing** treaty and customary IHL; it does not change the law. It draws on treaties, *travaux préparatoires*, case law, military manuals, doctrine and five expert meetings of 40–50 experts. It **does not necessarily reflect a majority** of the experts; the positions are the ICRC's alone. Several experts later withdrew their names because of disagreements.
- **Scope:** it concerns **conduct of hostilities only** – when a person may be attacked. It does **not** govern status or treatment after capture (detention, POW status), and is without prejudice to IHRL and *jus ad bellum*.
- Applies to **both IACs and NIACs**. Loss of protection also means the person need not be counted in the **proportionality** assessment when a nearby target is attacked.

Part A – Who is a civilian?

Recommendation I – Civilians in international armed conflict

All persons who are neither members of the armed forces of a party nor participants in a levée en masse are civilians, protected unless and for such time as they directly participate. The categories are **mutually exclusive**.

- **Armed forces** (AP I, Art. 43): all organized armed forces, groups and units under a command responsible to a party – including irregular militias and volunteer corps that **belong to a party** (a de facto relationship is enough, e.g. tacit agreement or conduct showing for which party the group fights). Membership in regular forces is set by domestic law; the Art. 4 GC III conditions (uniform, carrying arms openly, etc.) are conditions for **combatant privilege and POW status**, not for membership.
- **Levée en masse**: inhabitants of a non-occupied territory who spontaneously take up arms against an invading force, without time to organize, carrying arms openly and respecting IHL – the only armed civilians-turned-combatants with combatant privilege.
- Groups that fight but **do not belong to a party** are not armed forces of that party; their members remain civilians who may lose protection through DPH (or they are a separate party to a parallel NIAC).

Recommendation II – Civilians in non-international armed conflict

All persons who are not members of State armed forces or organized armed groups of a party are civilians. Organized armed groups are the armed forces of a non-State party and consist **only** of individuals whose **continuous function is to take a direct part in hostilities** ("**continuous combat function**", CCF).

- **State armed forces** include regular forces and other units (e.g. national guard, police, border guards) that in fact take on combat functions.
- **CCF** requires **lasting integration** into the group: a continuous function of preparing, executing or commanding acts amounting to DPH. It can be shown by e.g. uniforms, distinctive signs, specific weapons, or repeated DPH in support of the group. A person recruited, trained and equipped to fight has CCF **even before the first hostile act**.
- **Not members** (they remain civilians): those who only **recruit, train, finance or make propaganda**, or who provide political, administrative or other support (e.g. supplying food or shelter) – unless their function also involves DPH. "**Reservists**" who return to civilian life are civilians until called back.
- CCF **does not give combatant privilege**; members of armed groups can still be prosecuted under domestic law for taking part in hostilities.

Recommendation III – Private contractors and civilian employees

Contractors and employees who are civilians are protected **unless and for such time as they directly participate**. Their location or activities (e.g. working near military objectives) may expose them to a higher risk of **incidental** harm. If a contractor is in fact incorporated into the armed forces (e.g. through a combat function), they are members of the forces. Many contractor tasks (e.g. guarding military objectives against the enemy, interrogation linked to operations, operating weapons systems) can amount to DPH; others (catering, construction, general logistics, guarding against ordinary criminals) do not.

Part B – What is direct participation in hostilities?

Recommendation IV – DPH as a specific act

DPH refers to **specific hostile acts** by individuals as part of the conduct of hostilities between parties – not to a person's status, function or general affiliation. "Hostilities" = the collective resort by the parties to means and methods of injuring the enemy; "participation" = the individual involvement of a person in them. "Direct" and "active" participation (CA3) mean the same.

Recommendation V – The three constitutive (cumulative) elements

Element	Test	Examples
1. Threshold of harm	The act must be **likely** to (a) **adversely affect the military operations or military capacity** of a party, **or** (b) inflict **death, injury or destruction** on protected persons or objects. Objective likelihood, not actual harm.	Yes: shooting, planting mines, sabotage, blocking or capturing military personnel or objects, clearing mines laid by the enemy, interfering with military computer networks, attacks on civilians (sniping, bombing). No: refusing to collaborate, political propaganda, building fortifications that are not used immediately.

Element	Test	Examples
2. Direct causation	A **direct causal link** between the act and the harm – harm caused in **one causal step** – either by the act itself or by a **coordinated military operation** of which the act is an **integral part**. Temporal or geographical proximity is not enough on its own.	Yes: driving ammunition **to an active firing position**; identifying targets and transmitting tactical intelligence; operating a drone; being part of a team where each act is integral (e.g. the lookout in an ambush). No: **general war effort** or **war-sustaining** activities – producing weapons, financing, recruitment and training (unless for a specific operation), transporting ammunition from a factory to a storehouse, assembling an IED in a workshop (unlike planting it).
3. Belligerent nexus	The act must be **specifically designed** to cause the harm **in support of one party and to the detriment of another**. This is judged objectively (the design of the act), not by the person's subjective intent.	No nexus: **individual self-defence** against prohibited violence; harm during **civil unrest** (riots, demonstrations) not designed to support a party; ordinary **crime** (bank robbery, looting for personal gain); harm by people forced to act (e.g. **involuntary human shields**).

- **Human shields**: **voluntary** shields who create a **physical obstacle** to military operations (e.g. in ground operations) may be DPH. But where they only add legal obstacles – increasing expected civilian casualties in air or artillery attacks – they do **not** directly cause harm and remain protected (counted in proportionality). **Involuntary** shields are never DPH.
- **Legality is irrelevant**: whether an act is lawful or criminal under national or international law does not affect whether it counts as DPH.

Recommendation VI – Beginning and end of DPH

Preparatory measures for a specific act, and **deployment to and return from** its location, are an integral part of the act. Preparation must be specifically military and closely linked to a **specific** operation (e.g. loading bombs onto a plane for a specific attack; equipping and briefing a unit) – not general preparation (buying chemicals, general training). The return ends when the person physically separates from the operation (e.g. laying down, storing or hiding weapons and resuming civilian activities).

Part C – Modalities of the loss of protection

Recommendation VII – Temporal scope of loss of protection

- **Civilians** lose protection **only for the duration of each specific act** of DPH (including preparation, deployment and return). Between acts they regain protection – the "**revolving door**" of civilian protection, which the ICRC calls an **integral part, not a malfunction**, of IHL: it protects civilians from attack when they pose no military threat.
- **Members of organized armed groups** (with CCF) lose protection **for as long as they assume that function**, even when not actively fighting – so fighters cannot use the revolving door. They regain protection only by clearly disengaging (e.g. lasting return to civilian life).
- Recurrent individual participation (without CCF) does not turn a civilian into a member; each act must be assessed separately.

Recommendation VIII – Precautions and presumptions in doubt

All feasible precautions must be taken to determine whether a person is a civilian and, if so, whether they are directly participating. **In case of doubt, the person must be presumed protected** (cf. AP I, Art. 50(1)). The assessment must be reasonable given the information available at the time.

Recommendation IX – Restraints on the use of force in direct attack

Besides specific IHL rules on means and methods (and other branches of law, e.g. IHRL), "the **kind and degree of force** which is permissible against persons not entitled to protection against direct attack **must not exceed what is actually necessary** to accomplish a legitimate military purpose in the prevailing circumstances". Based on the principles of **military necessity and humanity**: losing protection is not a "licence to kill". Where capture or other less harmful means are possible without additional risk to the attacker or civilians (e.g. in territory under firm control), killing may not be necessary. This was **the most controversial section**: some experts held there is no legal duty under IHL to capture rather than kill. All agreed, however, that soldiers need not take extra risks, and that killing is unlawful where there manifestly is no military necessity.

Recommendation X – Consequences of regaining civilian protection

IHL **neither prohibits nor privileges** civilian DPH. Civilians who stop participating, and members of armed groups who stop their CCF, regain **full protection** against direct attack. But they have **no combatant immunity**: they can be **prosecuted under domestic law** for their acts (even lawful acts of war), and for any war crimes. Only members of the armed forces in IACs and participants in a levée en masse have the **combatant privilege**.

Key takeaways

- DPH is the **exception** to civilian immunity from attack; its meaning determines **who may be lawfully killed**, so the ICRC interprets it **narrowly** to protect civilians.
- **Three-question structure**: who is a civilian (I–III) → which acts are DPH (IV–VI) → what follows (VII–X).
- **IAC**: anyone not in the armed forces or a levée en masse is a civilian. **NIAC**: anyone not in State forces or an organized armed group is a civilian; group membership depends on a **continuous combat function**, not mere affiliation.
- Recruiters, financiers, propagandists, cooks and other **support** personnel of armed groups remain **civilians** unless their function includes DPH.
- DPH = **threshold of harm + direct causation (one causal step) + belligerent nexus**, all cumulative. General war effort and war-sustaining activities do **not** qualify.
- Civilians lose protection only **for the duration of each act** (revolving door); fighters with CCF lose it **for as long as they hold that function**.
- **Doubt** → **presume civilian.** Force must not exceed what is **actually necessary** (the controversial Section IX, about whether there is a duty to capture rather than kill).
- DPH is **not a war crime**, but civilians and armed-group members have **no combatant privilege** and can be prosecuted domestically.
- The Guidance is **not binding** – it is the ICRC's view, and several parts (CCF, revolving door, Section IX) are **contested** by some states and scholars.

Why this article is relevant to this week's topic

Status of persons in armed conflict

- IHL is built on the **principle of distinction**: every person falls into a category (combatant or member of the armed forces, civilian, levée en masse) that decides whether they may be attacked. The Guidance defines these categories **for targeting purposes** in both IACs and NIACs.
- It fills a major gap for **NIACs**: treaty law has **no "combatant" category** for armed groups. The **continuous combat function** gives armed-group fighters a functional status equivalent to soldiers for targeting, without giving them **combatant privilege or POW status**.

- It separates **targetability** from **status after capture**: POW status (GC III, Art. 4), civilian internee status (GC IV) and fundamental guarantees (CA3, AP I Art. 75, AP II Arts. 4–6) follow different rules – a key distinction for exam questions.
- It addresses modern "in-between" persons: **private military and security contractors**, civilian intelligence staff, civilian employees, "reservists", and part-time fighters.
- Recommendation X links to **"unlawful/unprivileged combatants"**: civilians who fight are not prohibited from doing so under IHL, but they lack immunity from domestic prosecution.

Direct participation in hostilities

- It is **the leading text** on DPH: the three constitutive elements, the beginning and end of an act, and the revolving door are the standard framework used in courts, military manuals and scholarship (e.g. the Israeli Supreme Court's *Targeted Killings* judgment of 2006 is an earlier, partly different approach).
- It gives **practical tests** for case questions: ammunition truck drivers, human shields, IED assemblers v. those who plant them, financiers, computer network attacks, drone operators.
- It frames the main **debates**: critics (e.g. Schmitt, Parks, Watkin, Boothby) argue that CCF and the revolving door favour armed groups and that Section IX imports human-rights standards; supporters see it as essential to protect civilians from overbroad targeting (e.g. "signature strikes").
- It is directly relevant to **current conflicts** – urban warfare in Gaza and Ukraine, civilians using apps to report enemy positions, hackers attacking military networks, and armed groups whose members blend with the population.

Gender and the law

The Guidance itself is written in gender-neutral terms ("he or she") and does not discuss gender explicitly. The points below are about how its tests interact with gendered assumptions, as raised in feminist and critical IHL scholarship – useful for class discussion.

- **Function, not identity**: CCF and the specific-act test rely on **what a person does**, not on characteristics such as sex or age. This challenges targeting practices that treat "**military-age males**" as presumed fighters (e.g. in counting casualties of drone strikes) – which conflicts with Recommendation VIII's **presumption of civilian status in case of doubt**.
- **Women in support roles**: many women connected to armed groups (cooks, carers, "wives" of fighters, smugglers of supplies, recruiters, propagandists) remain **civilians** under the Guidance, because support and general war effort are not DPH. This protects them from attack, but can also make their **actual participation invisible** – which matters for DDR programmes and post-conflict status.
- **Women and girls as fighters**: where women hold combat functions (e.g. Kurdish YPJ, LTTE, female suicide bombers), they lose protection exactly like men. Gendered stereotypes that women are non-threatening can lead both to **failures of distinction** and to exploitation (armed groups using women to avoid suspicion).
- **Forced participation**: the belligerent nexus and the treatment of **involuntary human shields** are relevant to women and girls who are coerced, abducted or trafficked into supporting armed groups (including sexual slavery) – coerced acts are not DPH.
- **Consequences after capture**: whether a woman is treated as a fighter, a civilian internee or a victim shapes her rights in detention (separate quarters and female supervision under GC III/IV, AP I Art. 76, AP II Art. 5(2)(a)) and her prosecution – linking DPH to the gendered rules on **status of persons**.